IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No 217

CP(CAA)/79(AHM)2022
in
CA(CAA)/48(AHM)2022

Order under Section 230-232 Co.Act,2013

IN THE MATTER OF:

Gujarat Sidhee Cement Limited (Transferor Company) **.....Applicant**

Saurashtra Cement Limited (Transferee Company) **.....Respondent**

Order delivered on ..03/03/2023

Coram:

Dr. Madan B Gosavi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Mr. Saurabh Soparkar, Sr. Adv. a/w.
	: Ms. Dharmishta Raval, Adv.
For the Income Tax Department	: Ms. Pankti Shah, Adv. for Ms. Maithili Mehta, Adv.
For the RD	: Mr. Rama Ambedkar, Assistant Director

ORDER

Learned Counsel for the Income Tax Department states that there are pending proceedings and pending demands against the Transferor and the Transferee Company.

Learned Sr. Counsel for the petitioner companies undertakes that the proceedings will be carried on against the transferee company and demand crystalized as per law will be paid by the transferee company. Subject to this statement, Learned Counsel for the Income Tax Department states that she does not have any objection to the approval of the Scheme.

We direct Learned Sr. Counsel to produce on record the circular issued by the Competition Commission of India about the applicability, or otherwise, of the Commission Act to the scheme involved. It is to be done by way of an affidavit within three days.

Matter stands adjourned for further consideration on 09.03.2023.

-sd- -sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

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